AS TO THE ADMISSIBILITY OF

Application No. 12519/86
by M.A. and 39 Others
against the United Kingdom

The European Commission of Human Rights sitting in private on 13 July 1987, the following members being present:

MM. C.A. NØRGAARD, President
J.A. FROWEIN, First Vice-President
S. TRECHSEL, Second Vice-President
F. ERMACORA
E. BUSUTTIL
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.C. SOYER
H.G. SCHERMERS
H. DANELIUS
G. BATLINER
Mrs G.H. THUNE
Sir Basil HALL
MM. F. MARTINEZ
C.L. ROZAKIS
Mrs J. LIDDY

Mr. H.C. KRÜGER, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 28 August 1986 by M.A. and 39 Others against the United Kingdom and registered on 27 October 1986 under file No. 12519/86;

Having regard to the report provided for in Rule 40 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The applicants, British citizens and civil servants, reside in the United Kingdom. Their names are set out in the schedule attached hereto. Before the Commission they are represented by Messrs. Lawford & Co., solicitors practising in London.

The applicants rely on the facts forming the background to, and set out in, Application No. 11603/85 by the Council of Civil Service Unions and Others against the United Kingdom, as well as in Application No. 12105/86, A. and M. against the United Kingdom.

The applicants originally complained under Article 11 of the Convention that individual employees at Government Communications Headquarters (GCHQ) no longer have the right to belong to a trade union. Under Article 13 they alleged that there was no effective remedy under domestic law in respect of the alleged breach of Article 11.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 28 August 1986 and registered on 27 October 1986.

On 20 January 1987 the Commission declared Application No. 11603/85, Council of Civil Service Unions and Others against the United Kingdom, inadmissible.

On 27 April 1987 the applicants informed the Secretary that they did not wish to pursue their application.

REASONS FOR THE DECISION

The Commission notes that the applicants do not wish to pursue their application. It finds no reasons of a general character affecting the observance of the Convention which necessitate the further retention of this case. Accordingly, the Commission accedes to the applicants' request to withdraw their application.

For these reasons, the Commission

DECIDES TO STRIKE THE APPLICATION OFF ITS LIST OF CASES.

Secretary to the Commission — President of the Commission

(H.C. KRÜGER) — (C.A. NØRGAARD)